

Superior Court of the State of California
County of Orange

TENTATIVE RULINGS
DEPARTMENT C27
JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all counsel intend to submit on the Court's tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5227. Please do not call the department unless **all** parties submit on the tentative ruling. If all sides submit on the Court's tentative ruling and so advise the Court, the tentative ruling will become the Court's final ruling and the prevailing party is ordered to give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

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TENTATIVE RULINGS

July 29, 2026

	Case Name	Tentative
102	2025-01488628 Zamora vs. General Motors LLC	Motion for Summary Judgment and/or Adjudication The motion by Defendant General Motors (“Defendant”) for summary judgment on the Complaint filed by Plaintiff Elza Zamora (“Plaintiff”) is granted. General legal authority In both summary judgment and summary adjudication proceedings, the pleadings determine the scope of the relevant issues. (<i>Port Medical Wellness, Inc. v. Connecticut General Life Ins. Co.</i> (2018) 24 Cal.App.5th 153, 169.) The standard governing motions for summary judgment and summary adjudication is settled. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Ibid.</i>) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) “A court identifies the issues framed by the pleadings, determines whether the moving party’s showing has established facts which negate the opponent’s claim and justify a judgment in the moving party’s favor, and if the summary judgment motion is meritorious on its face, the court will look to whether the opposition demonstrates there are triable, material factual issues.” (<i>Clark v. Baxter Healthcare Corp.</i> (2000) 83 Cal.App.4th 1048, 1054.) The opposing party must show by reference to specific facts the existence of a triable issue as to that cause of action. (<i>Aguilar v. Atlantic Richfield Co., supra</i>, 25 Cal.4th at p. 850.) “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1).) A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co., supra</i>, 25 Cal.4th at pp. 854-855; <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; see <i>Sheiding v. Dinwiddie Constr. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 [finding Union Bank rule only applies where discovery requests are broad enough to elicit all such

information].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

The motion shall be supported by affidavits, declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice shall or may be taken.” (Code Civ. Proc., § 437c, subd. (b)(1).)

The motion and opposition must be accompanied by a separate statement. (Cal. Rules of Ct., Rule 3.1350, subd. (c)(2), (d), (e)(2), (f), and (g); Code Civ. Proc. §437c, subd. (b).) The separate statement must set forth “plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court’s discretion constitute a sufficient ground for denying the motion.” (Code Civ. Proc., § 437c, subd. (b)(1).) The format of the separate statement must comply with the requirements set forth in California Rules of Court, Rule 3.1350, subd. (d), (f), and (h).

Merits

Plaintiff’s Complaint alleges two causes of action against Defendant – violation of the Song-Beverly Consumer Warranty Act breach of express warranty and breach of implied warranty (Song Beverly).

First cause of action for violation of Song-Beverly Consumer Warranty Act Breach of Express Warranties

Plaintiff’s Complaint alleges Defendant “violated the Song-Beverly Consumer Warranty Act by failing to confirm the Vehicle to the express written warranties win a reasonable number of repair attempts or within the warranty periods, and by failing to promptly replace the vehicle or make restitution to Plaintiff.” (Complaint, ¶ 12.)

“To succeed on a claim for breach of an express warranty for a vehicle, the buyer plaintiff must prove that (1) the vehicle had a defect or nonconformity covered by a written warranty that substantially impaired the vehicle’s use, value, or safety to a reasonable person in plaintiff’s shoes (the nonconformity element); (2) the vehicle was presented to an authorized representative of the manufacturer for repair (the presentation element); (3) the manufacturer or its authorized repair facility did not repair the defect after a reasonable number of repair attempts (the failure to repair element); and (4) the manufacturer did not promptly replace or repurchase the vehicle from the plaintiff (the failure to replace or repurchase element).” (*Carver v. Volkswagen Group of America, Inc.* (2024) 107 Cal.App.5th 864, 879.)

“There is no set timeframe for an offer to be ‘prompt.’ However, courts have found offers to be prompt where 40 to 50 days elapsed between the consumers’ initial requests for repurchase/replacement and the manufacturers’ offers. (*Dominguez v. American Suzuki*

Motor Corp. (2008) 160 Cal.App.4th 53, 59, 72 Cal.Rptr.3d 354 (*Dominguez*) [offer prompt where there was six weeks between the plaintiff's first demand and the manufacturer's offer]; *De Leon v. Ford Motor Co.* (C.D.Cal., Nov. 13, 2019, No. CV 18-7975 PSG (FFMx)) 2019 WL 7195325, at *6 [“Courts have generally found that a manufacturer makes a prompt offer when it is made within fifty days.”]; *Medrano v. Volkswagen Group of America, Inc.* (C.D.Cal. July 6, 2012, No. 2:12-cv-02198-SVW-MAN) 2012 WL 12882428 at *3 [45 days between an initial request and an offer to repurchase or replace would be prompt].” (*Carver v. Volkswagen Group of America, Inc.*, 107 Cal.App.5th at 879-880.)

Defendant met its initial burden to show Defendant promptly offered to repurchase the Subject Vehicle from Plaintiff. (Defendant’s Material Fact [“DMF”] No. 5-10.)

Plaintiff contends, without any supporting evidence, that the offer was not promptly made and was not properly calculated in accordance with Civil Code section 1793.2, subdivision (d).

Civil Code section 1793.2, subdivision (d) provides, in pertinent part, as follows:

(d)(1) Except as provided in paragraph (2), if the manufacturer or its representative in this state does not service or repair the goods to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either replace the goods or reimburse the buyer in an amount equal to the purchase price paid by the buyer, less that amount directly attributable to use by the buyer prior to the discovery of the nonconformity...

(2) If the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B). However, the buyer shall be free to elect restitution in lieu of replacement, and in no event shall the buyer be required by the manufacturer to accept a replacement vehicle.

...

(B) In the case of restitution, the manufacturer shall make restitution in an amount equal to the actual price paid or payable by the buyer, including any charges for transportation and manufacturer-installed options, but excluding nonmanufacturer items installed by a dealer or the buyer, and including any collateral charges such as sales or use tax, license fees, registration fees, and other official fees, plus any incidental damages to which the buyer is entitled under Section 1794, including, but not limited to, reasonable repair, towing, and rental car costs actually incurred by the buyer.

(C) When the manufacturer replaces the new motor vehicle pursuant to subparagraph (A), the buyer shall only be liable to pay the manufacturer an amount directly attributable to use by the buyer of the replaced vehicle prior to the time the buyer first delivered the vehicle to the manufacturer or distributor, or its authorized service and repair facility for correction of the problem that gave rise to the nonconformity. When restitution is made pursuant to subparagraph (B), the amount to be paid by the manufacturer to the buyer may be reduced by the manufacturer by that amount directly attributable to use by the buyer prior to the time the buyer first delivered the vehicle to the manufacturer or distributor, or its authorized service and repair facility for correction of the problem that gave rise to the nonconformity. The amount directly attributable to use by the buyer shall be determined by multiplying the actual price of the new motor vehicle paid or

payable by the buyer, including any charges for transportation and manufacturer-installed options, by a fraction having as its denominator 120,000 and having as its numerator the number of miles traveled by the new motor vehicle prior to the time the buyer first delivered the vehicle to the manufacturer or distributor, or its authorized service and repair facility for correction of the problem that gave rise to the nonconformity. Nothing in this paragraph shall in any way limit the rights or remedies available to the buyer under any other law.
(Civ. Code, § 1793.2.)

Plaintiff submitted no evidence to raise a triable issue as to whether Defendant's offer to repurchase was promptly made. Defendant showed the repurchase offer was made 42 days after Plaintiff brought the Subject Vehicle in for repairs. (DMF No. 5 and 8.) This is well within the 40-50 day timeframe set forth in *Carver*. Plaintiff submitted no evidence to show the amount Defendant offered was not properly calculated. Plaintiff did not meet Plaintiff's shifted burden to raise a triable issue of material fact as to whether Defendant's offer to repurchase was promptly made or whether the offered amount was properly calculated.

Second cause of action for breach of implied warranty (Song Beverly)

Plaintiff's second cause of action for breach of implied warranty (Song Beverly) alleges Defendant "breached the implied warranty of merchantability as stated in Cal. Civ. Code § 1791.1 and 1792 in the vehicle has malfunctions, and nonconformities render the Vehicle unfit for the ordinary purpose for which it is used, and it would not pass without objection in the trade." (Complaint, ¶ 23.)

The elements for breach of the implied warranty of merchantability are lack of merchantability, causation, and damages. (*Carver v. Volkswagen Group of America, Inc.*, 107 Cal.App.5th at 888-889.)

"Pursuant to section 1794, subdivision (a), 'Any buyer of consumer goods *who is damaged* by a failure to comply with any obligation ... under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief.' (§ 1794, italics added.) Thus, 'the statute contemplates that a buyer must have been damaged to bring an action under Song-Beverly.' (*Duff v. Jaguar Land Rover North America, LLC* (2022) 74 Cal.App.5th 491, 504–505, 289 Cal.Rptr.3d 533; see *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 121, 41 Cal.Rptr.2d 295 [same], disapproved on another ground in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 205, 326 Cal.Rptr.3d 440, 557 P.3d 735.) Section 1794, subdivision (b) further provides: 'The measure of the buyer's damages in an action under this section shall include the rights of replacement or reimbursement as set forth in subdivision (d) of Section 1793.2.'" (*Carver v. Volkswagen Group of America, Inc.*, 107 Cal.App.5th at 889.)

A "plaintiff cannot prove damages to support his breach of implied warranty cause of action given [the manufacturer's] prompt, Act-compliant restitution offer that significantly exceeded the restitution amount required by the Act." (*Carver v. Volkswagen Group of America, Inc.*, 107 Cal.App.5th at 890.) In addition, the *Carver* Court found the defendants did not damage plaintiff when prior to litigation, the manufacturer offered plaintiff all the restitution he could recover under section 1793.2, subdivision (d). (*Id.*) The Court noted it was plaintiff's choice to refuse that offer in order to allege damages to support this lawsuit and seek civil penalties and attorney fees. (*Id.*)

Defendant met its initial burden to show Defendant made a prompt offer to repurchase

		pursuant to CCP section 1793.2, subdivision (d). (DMF No. 5-10.) Plaintiff did not meet Plaintiff's shifted burden to show a triable issue of material fact as to whether the offer was prompt or whether the offer was compliant with section 1793.2, subdivision (d). Plaintiff offered no evidence to show Defendant failed to comply or that Defendant's failure to comply was willful. (See, Civ. Code, § 1794, subd. (c).) Accordingly, Defendant's motion for summary judgment is granted. In light of this ruling, the Court declines to consider Defendant's alternative motion for summary adjudication. Defendant shall give notice.
103	2024-01438736 Stafford vs. Fitness International, LLC	Motion to Terminate Arbitration Plaintiff Joshua Stafford's motion to terminate arbitration is denied. Code Civ. Proc., § 1281.98 provides that if the drafting party of an arbitration agreement fails to pay certain fees and costs associated with an employment or consumer arbitration, the drafting party is in material breach of the agreement and waives its right to compel the employee to arbitrate his claims. In this matter, Defendants' payment of arbitration fees was due on 2/5/26; Defendants were late and paid the fees on 2/10/26. (Trostad Decl., Exs A-D.) Plaintiff thus argues that pursuant to Code Civ. Proc., § 1281.98, Defendants waived their right to arbitration by willfully failing to timely pay the required fees. Defendants submit evidence in opposition that counsel's failure to remit the filing fees was not willful given that the correspondence regarding payment was not addressed to all members of Defendants' litigation team pursuant to the operative service list. (David Decl., ¶¶ 5-9.) Once Defense counsel was included on the emails between Plaintiff's counsel and AAA, it paid the invoice for the required fees. (David Decl., ¶ 11.) Recently the California Supreme Court in <i>Hohenshelt v. Superior Court</i> (2025) 18 Cal.5th 310, addressed the application of § 1281.98 to a situation like this, where the defendant failed to timely pay the arbitration fees. The Court held that "under general contract law principles as under section 1281.98, a drafting party cannot avoid discharging the other party's contractual duty to proceed in arbitration if it willfully withholds fees necessary to move arbitration forward," however, "if the drafting party acted in good faith, it may seek relief... and its claim should be evaluated under the usual principles in law and equity governing relief from forfeiture or default, including whether the other party has been prejudiced." (<i>Id.</i> at 344.) The Court reversed the Court of Appeal's Order which found that because payment was untimely, the arbitration stay should be lifted. (<i>Id.</i> at 349.) Based on the foregoing, the Court denies Plaintiff's motion to terminate the arbitration. Neither willfulness, nor prejudice has been shown. Defendants shall give notice.

104	2024-01445807	Motion to Enforce Settlement Plaintiff RWC Development, LLC’s motion to enforce the parties’ written settlement agreement is granted. The Court will enter judgment against Defendants in the sum of \$59,703.72, which is the \$234,917.67 settlement amount minus \$190,000.00 already paid, plus prejudgment interest, attorneys’ fees, and costs. Defendants’ request for judicial notice is granted. “A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to ‘enter judgment pursuant to the terms of the settlement.’” (<i>Hines v. Lukes</i> (2008) 167 Cal. App. 4th 1174, 1182 (internal citations omitted)). This matter settled at mediation on 4/28/25. Pursuant to the agreement, Plaintiff agreed to dismiss and release its claims against the Defendants in exchange for \$234,917.67—which was the amount of Plaintiff’s project damages reflected in Plaintiff’s accounting records produced in discovery—and SRI agreed to dismiss and release its cross-claims against Plaintiff in exchange for a total payment of \$50,000.00 from the insurance company defending the cross-claims against RWC Development LLC. (Kron Decl., Ex. B.) Defendants also agreed to stipulate for entry of judgment against them in the total settlement amount of \$234,917.67, with the stipulation to be filed only if Defendants did not make the settlement installment payments as required. (Kron Decl., Ex. B.) The settlement agreement provides for five installment payments. Plaintiff agreed to forgive the fifth installment payment amount of \$44,917.67 if Defendants made the first four payments on time and in full. (Kron Decl., Ex. B, § 3.6.) The parties do not dispute that this did not happen, as Defendants were late in paying the first two installments. (Kron Decl., ¶¶ 12-13.) Defendants’ third and fourth installment payments were made on time. (Kron Decl., ¶¶ 13- 14.) Defendants defaulted a third time by failing to make the fifth and final installment payment which was due on 12/24/25. (Kron Decl., ¶ 15.) In opposition, Defendants contend that the fifth installment payment is an unenforceable penalty/liquidated damages clause pursuant to Civ. Code, § 1671. They contend that the negotiated settlement amount was \$190,000.00, which was paid (not \$234,917.67). This is not supported by the terms of the settlement agreement or the law set forth in <i>Greentree Financial Group, Inc. v. Execute Sports, Inc.</i> (2008) 163 Cal.App.4th 495. In <i>Greentree</i>, the Court noted that “the judgment would have been enforceable if it had been designed to encourage ESI to make its settlement payments on time...” (<i>Id.</i> at 500.) This appears to be precisely the purpose of the structure of the parties’ settlement agreement here. If Defendants had made timely payments, they essentially would have been given a
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		discount on the settlement amount owed. Contrary to Defendants’ argument, the Court finds that the disputed fifth payment does not operate as an unenforceable penalty. The Settlement Agreement plainly states in Section 3.5 that “Sierra shall pay RWC Two Hundred Thirty-Four Thousand Nine Hundred Seventeen an .67/100 dollars (\$234,917.67) in settlement of RWC’s claims in the Action,” as does the Stipulation for Entry of Judgment in Paragraph 2. Section 3.7 of the agreement provides that if Defendants timely paid the first four installments totaling \$190,000.00, “the remaining balance shall be forgiven and the settlement shall be deemed paid in full.” This provision supports (by the terms “balance” and “forgiven”) Plaintiff’s argument that the settlement amount was not for \$190k as Defendants suggest, but for \$234,917.67. The final \$44,917.57 was not a penalty, but part of the balance of the settlement amount. Accordingly, because Plaintiff demonstrates a valid and enforceable settlement agreement which Defendants breached by failing to make two timely installment payments, and a final installment payment, the motion is granted. Plaintiff shall give notice.
106	2023-01369795 California HOA Collection Services LLC vs. Whitmore	1. Motion - Other 2. Case Management Conference Claimant Jonathan Whitmore (“Claimant”) claims the surplus funds subject to this action. Claimant previously sought the same relief, but the motion was denied without prejudice due to Claimant not submitting an affidavit that addressed the deficiencies noted in the Court’s Minute Orders. At the July 13, 2026 Case Management Conference, the Court set the hearing on this motion after Claimant and the Court discussed Claimant filing this motion nearly a year ago but somehow, a hearing was not scheduled. The unopposed motion by Claimant Jonathan Whitmore (“Claimant”) for claim of the surplus funds subject to this action is granted. Claimant’s notice of motion states the motion is based on the files and records of this case and Claimant’s declaration. (Motion, 2:3-7.) The Court notes that on February 10, 2025, the Court granted the unopposed motion by California HOA Collection Services LLC (“Plaintiff”) to be dismissed and discharged upon deposit of the surplus funds with the Clerk of the Court. Plaintiff deposited the surplus funds on March 14, 2025. Accordingly, Plaintiff was discharged and dismissed. (See, 2/10/2025 Minute Order, ROA No. 56.) The court shall distribute the deposited funds to any and all claimants entitled thereto. (Code Civ. Proc., § 2924j, subd. (j).) The distribution of the funds shall be made in the following order of priority: (1) To the costs and expenses of exercising the power of sale and of sale, including the payment of the trustee’s fees and attorney’s fees permitted pursuant to subdivision (b) of Section 2924d and subdivision (b) of this section.

- (2) To the payment of the obligations secured by the deed of trust or mortgage which is the subject of the trustee's sale.
 - (3) To satisfy the outstanding balance of obligations secured by any junior liens or encumbrances in the order of their priority.
 - (4) To the trustor or the trustor's successor in interest. In the event the property is sold or transferred to another, to the vested owner of record at the time of the trustee's sale.
- (Civ. Code, § 2924k.)

"A trustee may charge costs and expenses incurred for such items as mailing and a reasonable fee for services rendered in connection with the distribution of the proceeds from a trustee's sale, including, but not limited to, the investigation of priority and validity of claims and the disbursement of funds. If the fee charged for services rendered pursuant to this subdivision does not exceed one hundred dollars (\$100), or one hundred twenty-five dollars (\$125) where there are obligations specified in paragraph (3) of subdivision (a), the fee is conclusively presumed to be reasonable." (Civ. Code, § 2924k, subd. (b).)

Here, Claimant contends he is entitled to the surplus proceeds under subdivision (a)(4), because the three categories preceding it have been satisfied by the Plaintiff (i.e., the trustee). (See Compl. at ¶ 15 ["From the proceeds of the sale, Plaintiff paid the amount owed to the Association and all costs permitted by law..."].)

Probate Code section 13101, subdivision (a), provides:

To collect money, receive tangible personal property, or have evidences of a debt, obligation, interest, right, security, or chose in action transferred under this chapter, an affidavit or a declaration under penalty of perjury under the laws of this state shall be furnished to the holder of the decedent's property stating all of the following:

- (1) The decedent's name.
- (2) The date and place of the decedent's death.
- (3) "At least 40 days have elapsed since the death of the decedent, as shown in a certified copy of the decedent's death certificate attached to this affidavit or declaration."
- (4) Either of the following, as appropriate:
 - (A) "No proceeding is now being or has been conducted in California for administration of the decedent's estate."
 - (B) "The decedent's personal representative has consented in writing to the payment, transfer, or delivery to the affiant or declarant of the property described in the affidavit or declaration."
- (5) "The current gross fair market value of the decedent's real and personal property in California, excluding the property described in Section 13050 of the California Probate Code and any property included in a petition filed under Section 13151 of the California Probate Code, does not exceed [Insert dollar amount specified in subdivision (g) of Section 13101 of the California Probate Code]."
- (6) A description of the property of the decedent that is to be paid, transferred, or delivered to the affiant or declarant.
- (7) The name of the successor of the decedent, as defined in Section 13006, to the described property.
- (8) Either of the following, as appropriate:
 - (A) "The affiant or declarant is the successor of the decedent (as defined in Section 13006 of the California Probate Code) to the decedent's interest in the described property."
 - (B) "The affiant or declarant is authorized under Section 13051 of the California

		Probate Code to act on behalf of the successor of the decedent (as defined in Section 13006 of the California Probate Code) with respect to the decedent's interest in the described property.” (9) “No other person has a superior right to the interest of the decedent in the described property.” (10) “The affiant or declarant requests that the described property be paid, delivered, or transferred to the affiant or declarant.” (11) “The affiant or declarant affirms or declares under penalty of perjury under the laws of the State of California that the foregoing is true and correct.” “Reasonable proof of the identity of each person executing the affidavit or declaration shall be provided to the holder of the decedent's property.” (Prob. Code, § 13104, subd. (a.); Cal. Prac. Guide Probate at ¶ 2:19.1 [“It is the claimant's duty to ‘furnish’ the holder with proper identification”].) If the declarant is not personally known to the holder of the funds, the affidavit or declaration must contain “a notary public's certificate of acknowledgment of the identity of the person.” (Prob. Code, § 13104, subd. (f).) The property holder is not required to honor a defective Prob.C. § 13101 declaration; and a holder who does honor a defective declaration will not receive the protection afforded by Prob.C. § 13106 (which discharges the holder from further liability with respect to the property transferred under Prob.C. § 13100.” (Cal. Prac. Guide Probate at ¶ 2:17a.) In support of this motion, Claimant provided: [1] a copy of the Grant Deed of the Property to Decedent; [2] a copy of the Decedent’s Certificate of Death; and, [3] a “California Affidavit for Collection of Personal Property,” with a notary's certificate of acknowledgment attached. (Motion, ROA No. 84, Exhibits A, B, and C.) Claimant showed Decedent owned the Subject Property as of 3/22/1999. (Motion, Exhibit A.) The death certificate submitted as Exhibit B in support of the motion shows Decedent died on April 15, 2021 and that Claimant is Decedent’s son. Claimant’s attorney attests Claimant is the son of the former owner of the real property that gave rise to the surplus. (Cara Decl., ROA NO. 84, ¶ 4.) Claimant’s declaration attests: • His mother, the decedent, was the former owner of the Property. (ROA 36 [Whitmore Decl. at ¶ 5].) • Decedent died on April 15, 2021, without a will. (Whitmore Decl. at ¶ 6.) • Decedent was the sole owner of the Property and he is her intestate successor in interest and the proper claimant of the surplus proceeds. (Whitmore Decl. at ¶ 7.) Claimant has established he is entitled to the surplus funds of \$165,355.83 that has been deposited with the Court. No competing claims have been asserted. Claimant’s motion is granted. The case management conference is vacated. Claimant is ordered to give notice.
107	2025-01467718 Marriott Hotel Services, LLC vs.	1. Motion to Set Aside/Vacate Default 2. Case Management Conference Nathan Nguyen’s motion to vacate the default entered against him on 7/15/25 in this

	Do Business Academy LLC	action is granted. [ROA 62.] Defendant is ordered to file a responsive pleading no later than September 4, 2026. The case management conference is continued to January 25, 2027 at 10:00 a.m. in Department C27. Moving party is ordered to give notice.
109	2024-01396208 Perez vs. Torre	1. Motion for Reclassification 2. Trial Setting Conference 3. Order to Show Cause re: Monetary Sanctions The motion by Defendant Trisha Katherine Torre (“Defendant”) for an order reclassifying this action from an unlimited civil case to a limited civil case is denied. As an initial matter, Defendant’s proof of service shows that her reply was served on third parties in a different action, <i>Abba v. Gadea, et al.</i>, Case No. CIVSB2405744, rather than on Plaintiffs. Accordingly, the Court will not consider the reply unless Defendant demonstrates proper service before the hearing. Under Code of Civil Procedure section 403.040, a court may reclassify a case from unlimited to limited civil when the case has been misclassified – that is, if the amount in controversy is \$35,000 or less. (Code Civ. Proc., § 403.040, subd. (a); <i>see, Stern v. Superior Court</i> (2003) 105 Cal.App.4th 223, 230; <i>see also</i> Code Civ. Proc., §§ 85, 88 [defining limited and unlimited civil cases].) The amount in controversy is the amount the plaintiff seeks to recover, excluding attorneys’ fees, interests, and costs. (Code Civ. Proc., § 85.) The governing standard for reclassifying a case from unlimited to limited jurisdiction is found in <i>Walker v. Superior Court</i> (1991) 53 Cal.3d 257. Pursuant to <i>Walker</i>, a trial court must conclude that the amount in controversy will “necessarily” fall short of the jurisdictional minimum before transferring a case from unlimited to limited jurisdiction. (<i>Id.</i>, at 270.) Appellate courts have underscored the high threshold set by <i>Walker</i>: “[The plaintiff] may well not prevail on the factual disputes regarding the extent of his injuries But a [<i>Walker</i>] hearing is not to be perceived as a minitrial or an opportunity for a trial judge to put forth a well-educated guess of a verdict. The unlikelihood of a judgment in excess of \$25,000 is not the test. The trial court reviews the record to determine whether the result is obtainable. Simply stated, the trial court looks to the possibility of a jurisdictionally appropriate verdict, not to its probability.” (<i>Maldonado v. Superior Court</i> (1996) 45 Cal.App.4th 397, 402.) When a defendant brings a motion to reclassify after the time to respond to the complaint, the defendant must show not only that the case was misclassified but also good cause for not bringing the motion earlier. (Code Civ. Proc., § 403.040, subd. (b).) No definite standard or formula is prescribed by law to fix reasonable pain and suffering compensation. Indeed, the law does not permit opinion testimony on the amount of such reasonable compensation, and argument urging a particular calculation or amount cannot be considered evidence. (<i>Loth v. Truck–A–Way Corp.</i> (1998) 60 Cal.App.4th 757, 764-768.) Rather, the calculation is left to the jury’s subjective discretion: The jury is specifically instructed on the absence of a fixed standard in arriving at a pain and suffering award, the only guideline being “a reasonable amount based on the evidence and your common sense.” (CACI 3905A; <i>see, Greater Westchester Homeowners Ass’n v. City of Los Angeles</i> (1979) 26 Cal.3d 86, 103.)

		Defendant has not established that the action was incorrectly classified. Although Plaintiffs identified \$5,738.38 in medical expenses and approximately \$2,300 in property damage, their discovery responses do not limit their claims to those amounts. Both Plaintiffs reported continuing back pain and discomfort and asserted claims for general damages, including pain, suffering, anxiety, emotional distress, and future harm. (Wei Decl., ¶¶ 3–5, Exs. B–C [responses to Form Interrogs. Nos. 6.3, 7.1–7.3 & 9.1].) Plaintiffs also reserved the right to amend their responses as discovery continued. (Wei Decl., ¶¶ 3–4, Exs. B–C.) Moreover, although Plaintiffs’ Statement of Damages and Settlement Conference Statement do not conclusively establish the value of their claims, both indicate that Plaintiffs seek more than \$35,000. (Lopez Decl., Exs. A–B.) Accordingly, Defendant has not established to a legal certainty that Plaintiffs’ damages will necessarily be \$35,000 or less. Thus, the motion is denied. The OSC is discharged. Parties should be prepared to discuss trial dates. Plaintiffs shall give notice.
110	2023-01323759 Honarkar vs. Makhijani	1. Petition to Confirm Arbitration Award 2. ADR Review Hearing The petition of Plaintiffs Mohammad Honarkar and 4G Wireless, Inc. for an order confirming the arbitrator’s Final Award issued on 5/12/26 is granted. The Court will hear from counsel as to the terms of a proposed judgment to be submitted that will not infringe on Preferred Bank’s Complaint-in-Intervention. Background Facts In this action, Plaintiffs asserted claims against Mahender Makhijani, Continuum, various MOM-named entities, and others arising out of a real estate joint venture gone wrong. [First Amended Complaint (“FAC” – ROA #145).] In the FAC, Plaintiffs alleged Plaintiff Honarkar had already initiated arbitration proceedings. [<i>Id.</i>, ¶ 6.] On 8/3/23, JAMS appointed the Honorable David A. Thompson (Ret.), formerly a judge with the Orange County Superior Court and a justice on the 4/3 Court of Appeal, as arbitrator. [Plaintiffs’ Prior Petition (ROA # 413), ¶ 22.] In a separate action, MOM AS Investor Group LLC, MOM BS Investor Group LLC, and MOM CA Investor Group LLC, sued Honarkar. Orange County Superior Court case no. 2023-01322886 (the “related action”). In the related action, on 9/25/23, the Court ordered the dispute against Honarkar to be arbitrated pursuant to an arbitration provision in the operating agreements for the “MOM LLCs.” These operating agreements are attached to Plaintiffs’ petition (ROA #413) as Exhibits C-E. [See also, Plaintiffs’ Prior Petition, ¶ 17.] The 5/24/21 binding term sheet, to which respondent Continuum Analytics, Inc. is a party and signatory (through Mahender Makhijani signing on behalf of Continuum), contains an identical arbitration clause. [Plaintiffs’ Prior Petition, ¶ 18 and Ex. F at 10.]

On 9/28/23, MOM AS Investor Group LLC, MOM BS Investor Group LLC, and MOM CA Investor Group LLC submitted a demand for arbitration with JAMS, Case No. 5200001122, against Honarkar. This arbitration, JAMS Case No. 5200001122, was consolidated with the arbitration initiated by Honarkar, JAMS Case No. 5220003126 (collectively, the “arbitration”). [Plaintiffs’ Prior Petition, ¶ 24.]

On 10/20/23, the Court in this action granted Plaintiff Honarkar’s motion to stay these proceedings pending completion of arbitration. [ROA #349.]

Petitioners entered into an arbitration agreement with Nano Banc on 10/11/23. [Prior Petition, ¶ 19 and Ex. G at §2.]

Respondents to Plaintiffs’ prior petition (other than Nano Banc) filed motions in the consolidated Arbitration disputing arbitrability. On 1/3/24, following briefing and oral argument of the parties, the Arbitrator issued a ruling denying those motions and ordering that Respondents arbitrate all claims asserted against them. [Prior Plaintiffs’ Petition, ¶ 25.]

In the arbitration proceedings, after discovery, days of evidentiary hearings, and much briefing, the arbitrator issued his Partial Final Award. Respondents to Plaintiffs’ prior petition brought before the arbitrator a motion for correction, which was denied. [Plaintiffs’ Prior Petition, ¶¶ 26-29 and Ex. A.]

The Partial Final Award resolved “all claims submitted to arbitration, with the exception of the issues (the “Remaining Issues”) to be resolved in further proceedings in this arbitration including: (i) the claims stayed as a result of the MOM JV Entities’ bankruptcy; (ii) the accounting; and (iii) the determination of the amounts of restitution, damages, interest, attorney fees and costs to be awarded. The Arbitrator reserves jurisdiction to determine all aspects of the Remaining Issues, together with such additional issues as may arise between the parties.” [Partial Final Award, ¶ 15.]

Plaintiffs filed a petition to confirm the Partial Final Award; the MOM Parties filed a petition to vacate or correct the award. [ROA ## 399, 413, 422.] The Court confirmed the Partial Final Award on 10/20/25. [ROA #564.] “Judgment” was entered on 12/5/25. [ROA #597.] The Judgment further dismissed with prejudice all claims asserted by respondent MOM AS Investor Group LLC, MOM BS Investor Group LLC, MOM CA Investor Group LLC. *Id.*

After that Judgment was entered, and prior to the issuance of the Final Award now at issue, Plaintiffs reached a settlement with Nano Banc and dismissed them from the arbitration proceeding. [Plaintiffs’ Petition (ROA #1016) at 6:17-19.]

Appeals were filed, but were dismissed. [Remittitur (ROA # 1021).]

In the meantime, in furtherance of the Partial Final Award, the Court appointed a receiver. [ROA ## 583, 591.]

Facts Pertinent to Current Petition [Arbitration Proceedings Subsequent to the Partial Final Award]

The arbitrator heard the parties’ evidence as to damages at an evidentiary hearing conducted on January 26 to January 28, 2026. [Petition at ¶ 33.]. The Court notes that the Final Award notes that the further arbitration hearing was conducted on “December 26, 27

and 28, 2026.” (See Page 15, Section D of the Final Award attached as Exhibit A to the Petition.) This appears to be a typographical error.

The arbitrator then received closing, opposition, and reply briefing from the parties. The arbitrator deemed the matter closed as of March 13, 2026, when the final briefing was submitted.

As noted above, in May 2026 Plaintiffs and Nano Banc reached a settlement agreement resolving all claims against Nano Banc, so on 5/11/26 Plaintiffs filed with JAMS a request for dismissal as to Nano Banc only, which the JAMS clerk signed and entered that same day.

Prior to the issuance of the Partial Final Award, the arbitrator rejected all counter claims asserted in the arbitration against Plaintiffs. [See Final Award (Petition, Ex. A) at 19 and ex. A to the Final Award (Partial Interim Award) at 44, 48 ¶ 12.] In the Partial Final Award, the arbitrator had expressly denied the counter claims asserted by respondents MOM AS Investor Group LLC, MOM BS Investor Group LLC, and MOM CA Investor Group LLC. [Petition, Exhibit B at 44 ¶ 12.] Because of then-pending bankruptcy petitions, to the degree the same claims were asserted by the MOM LLCs, those claims were stayed. *Id.* The bankruptcy petitions were subsequently dismissed and, in the Final Award, the arbitrator denied all claims not expressly granted, including the counter claims asserted by the MOM LLCs against Petitioners. [Final Award (Petition Ex. A) at 19, 44 ¶ 16.]

On 5/12/26, the arbitrator’s Final Award was served on the parties. As stated in the Final Award, “This Final Award, together with the Partial Interim Award and the Partial Final Award, resolves all claims submitted to arbitration. Claims not expressly granted are denied. Arguments not discussed are either unnecessary to this Final Award or have been considered and rejected.” [Petition to Confirm, Ex. A at 44 ¶ 16.]

[Petition to Confirm, ¶¶33-35 and Ex. A.]

Complaint in Intervention

Quite recently and after arbitration proceedings were completed, Preferred Bank filed a complaint in intervention on the stipulation of the parties. [ROA ## 992, 1014.] Preferred Bank intervened in order to seek removal of a lis pendens Plaintiffs placed on real property securing a loan issued by Preferred Bank. [Complaint in Intervention (ROA #1014); Motion to Expunge (ROA #1039).]

Legal Standard

A petition to correct or vacate an arbitration award must be served and filed no later than 100 days after service of a signed copy of the award on the party seeking to correct the award. Code Civ. Proc. § 1288.2. A petition to confirm an arbitration award must be filed within four years from the date of service of a signed copy of the arbitration award upon the petitioner *and* at least 10 days after service of the award upon the petitioner. Code Civ. Proc. §§ 1288, 1288.4.

The petition must name as respondents all parties to the arbitration and may name as respondents any other person bound by the arbitration award. Code Civ. Proc. § 1285. The petition and notice of hearing must be served at least 10 days before the hearing. Code Civ. Proc. § 1290.2. Where the arbitration agreement does not provide the manner in which service shall be made and the person on whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with section 1290.4(a) of the Code of Civil Procedure, for service in California the petition

and notice of hearing must be served in a manner provided by law for the service of summons in an action. Code Civ. Proc. § 1290.4(b).

All of the petitions, whether to confirm, correct or vacate, were timely filed.

A petition to confirm an arbitration award must

- (a) set forth the substance of or attach a copy of the arbitration agreement;
- (b) set forth the name of the arbitrators; and
- (c) set forth or attach a copy of the award and the written opinion of the arbitrators, if any.

Code Civ. Proc. § 1285.4.

Plaintiffs' petition complies with these requirements. The agreements with the arbitration provisions, and prior findings of arbitrability, are alleged and attached. [Plaintiffs' Petition to Confirm (ROA #1016), ¶14 and Exs. C-E, I, J, K. So is the Final Award. [*Id.*, Ex. A.]

Upon petition, unless a court vacates an arbitration award it shall confirm the award. Code Civ. Proc. § 1286. Unless it vacates an award pursuant to Code Civ. Proc. § 1286.2, the court shall correct the award and confirm it as corrected if the court determines that: (1) there was an evident miscalculation of figures or an evident mistake in the description of any person, thing or property referred to in the award; (2) the arbitrator exceeded his powers but the award may be corrected without affecting the merits of the decision upon the controversy submitted; or (3) the award is imperfect in a manner of form, not affecting the merits of the controversy. Code Civ. Proc. § 1286.6.

Finally, a court shall vacate an arbitration award if it determines any of the following: (1) the award was procured by corruption, fraud, or other undue means; (2) there was corruption in any of the arbitrators; (3) the rights of the party were substantially prejudiced by misconduct of a neutral arbitrator; (4) the arbitrator exceeded his powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted; (5) the rights of a party were substantially prejudiced by the refusal of the arbitrator to postpone the hearing upon sufficient cause or by the arbitrator's refusal to hear evidence material to the controversy; or (6) the arbitrator making the award either: (a) failed to disclose a ground for disqualification or (b) was subject to disqualification. Code Civ. Proc. § 1286.2(a).

Judicial review of binding arbitration awards is generally limited to the statutory grounds for vacating or correcting an award. *Moshonov v. Walsh* (2000) 22 Cal. 4th 771, 775. A court may not vacate or correct an award because of the arbitrator's legal or factual error, even if the error appears on the face of the award. *Id.* In addition, arbitrators do not exceed their powers within the meaning of section 1286.2(a)(4) merely by rendering an erroneous decision on a legal or factual issue, so long as the issue was within the scope of the of the controversy submitted to the arbitrators. *Id.*

This is true even where the agreement provides that California law applies and the party contends that the arbitrator failed to correctly apply California law. *Baize v. Eastridge Companies* (2006) 142 Cal. App. 4th 293, 301-02. To obtain judicial review of the merits of an arbitration award, the arbitration agreement "must clearly [provide] that legal errors are an excess of arbitral authority that is reviewable by the court." *Cable Connection, Inc. v. DirecTV, Inc.* (2008) 44 Cal. 4th 1334, 1361.

Discussion

MOM Parties' Repetition and/or Preservation of Issues and Arguments Previously Raised

and Decided

The Arbitrator Exceeding His Authority by Award Punitive Damages Barred by the Parties' Agreement

As they did in the petition proceedings on the Partial Final Award, the MOM Parties argue that the Final Award should be vacated or corrected because the arbitrator awarded punitive damages in contravention of the parties' agreement.

The Court previously rejected this argument when ruling on the dueling petitions to confirm or vacate the Partial Final Award. [See 10/20/25 Minute Order (ROA #564).] For the reasons stated therein, the Court stands on its finding that the arbitrator did not exceed his authority by awarding punitive damages and declines to vacate or correct the Final Award on this ground.

Jurisdiction over Makhijani/The Arbitrator Exceeded His Authority by Imposing Individual Liability on Makhijani Based on Third-Party Status

Unlike with the prior petitions to confirm/vacate, Mahender Makhijani and Continuum Analytics, Inc. have not responded to the petition to confirm and are not parties to the opposition/motion to vacate.

Nonetheless, the current Mom Parties again argue – as they all argued in the prior petition proceedings – that the award is improper as to Mahender Makhijani because he did not sign an arbitration agreement and – contrary to the findings of the arbitrator -- was not a third party beneficiary of a contract with an arbitration agreement.

The Court previously found the arbitrator did not exceed his authority in finding, and ruling, that Makhijani was required to arbitrate the claims against him in this action. [ROA # 564 at 4.] This order, and the arbitrator's findings, addressed the same third-party issues raised by the Mom Parties now. [*Id.*]

For the reasons stated in its prior order, the Court stands on its prior ruling that the arbitrator did not exceed his authority in finding, and ruling, that Makhijani was required to arbitrate the claims against him in this action.

Failure to Disclose Ground for Disqualification

In the prior petition proceedings on the Partial Final Award, the then-MOM Parties and Defendant Nano Banc contended that the Partial Final Award must be vacated because the arbitrator failed to disclose his relationship with a lawyer that had represented Plaintiff Honarkar in other, since completed, matters. [Honarkar Decl. (ROA # 437), ¶¶ 2-3.] They pointed to the fact that the arbitrator presented at seminars with the lawyer and the lawyer attended a celebration put on by the Orange County Bar Association when the arbitrator was appointed to the Court of Appeal. [Leipzig Decl. (ROA #387) Exs. A (see page 26) and B. See also Mortimer Decl. (ROA #420), Exs. 17, 18 (same).]

On the current petition to confirm the Final Arbitration Award, the current MOM Parties again raise this issue , apparently as a ground to vacate the Final Arbitration Award.

The Court previously found that the arbitrator did not fail to disclose a ground for disqualification. [ROA # 564 at 4-5.] For the same reasons set forth in the 10/20/25 minute order, the Court finds that the arbitrator did not fail to disclose a ground for disqualification. Thus, there is no such basis to vacate the Final Award.

MOM Parties' New Issues and Arguments for Vacating the Final Award

Rights Substantially Prejudiced by Use of Sanctions rather than Proof

The MOM Parties contend that the arbitrator used sanctions to supply missing damages proof, barred material defenses, and converted an incomplete accounting into a billion-dollar award.

Essentially, they argue that their rights were substantially prejudiced by the arbitrator's refusal to hear evidence due to the MOM Parties failures to comply with discovery obligations. [See Final Award at 22-23.] The MOM Parties contend they were thus deprived of a meaningful opportunity to be heard on the central issue reserved for the damages phase. [See Final Award at 10-14, 22-23, 43-44.]

The MOM Parties contend that the arbitrator's rulings were essentially terminating sanctions. Other than arguing such sanctions should generally be rare, however, the MOM Parties do not make any showing that the arbitrator exceeded his authority in issuing such sanctions. Code of Civil Procedure section 1283.05(c) grants arbitrators the power to issue discovery orders including "sanctions, and penalties," and states that "such orders shall be as conclusive, final, and enforceable as an arbitration award on the merits..." As a result, "arbitrator discovery orders," such as sanctions, enjoy "the same degree of finality and thus, by implication, the same scope of judicial review" as arbitral awards. *Berglund v. Arthroscopic & Laser Surgery Ctr. of San Diego, L.P.* (2008) 44 Cal. 4th 528, 537.

The MOM Defendants attempt an end-run around this standard of review by re-casting the arbitrator's sanctions orders as a refusal to hear evidence under Code of Civil Procedure section 1286.2(a)(5). That provision, " 'if not properly limited, could swallow the rule that arbitration awards are generally not reviewable on the merits.' The provision is not 'a back door to *Moncharsh* through which parties may routinely test the validity of legal theories of arbitrators.' (*Hall v. Superior Court* (1993) 18 Cal.App.4th 427, 438-439, 22 Cal.Rptr.2d 376.)" *Heimlich v. Shivji* (2019) 7 Cal.5th 350, 368.

The Court finds that the arbitrator did not refuse to hear evidence for purposes of Code of Civil Procedure section 1286.2(a)(5) and declines to vacate or correct the Final Award on the basis asserted.

Denial of Due Process by Imposing both Punitive Damages and Treble Damages under Penal Code §496

The Final Award awards \$233,474,574 in Penal Code section 496 treble damages on derivative claims and separately awards \$652,167,468 in punitive damages on direct claims. [Final Award (Petition to Confirm, Ex. A) at 43-44.]

The MOM Parties contend this award improperly awards duplicative recovery for the same harm. They also assert that the amount of the punitive damages award is "suspect" in light of the amount of compensatory damages.

The arbitrator considered the MOM Parties' argument regarding "duplicative recovery." [Final Award at 37 ("they insist the MOM JV Entities must elect between treble damages and punitive damages to avoid unconstitutional duplication. These arguments fall short. . . . [T] the MOM Respondents have not cited any authority to support their election and duplication arguments.").]

Further, treble damages and punitive damages were awarded on different claims. The Arbitrator awarded punitive damages to Honarkar and 4G in connection with the fraud claim, and section 496 treble damages to the MOM LLCs in connection with the conversion

claim, for specific funds taken from those entities. Final Award at 37, 39, 43-44.]

The Court finds that the arbitrator did not exceed his powers in awarding treble damages and punitive damages and thus declines to vacate or correct the Final Award on this ground.

No Entry of Judgment Until Plaintiffs Disclose Nano Banc Settlement

The MOM Parties object that no judgment should be entered until Plaintiffs disclose the terms of their settlement with Nano Banc.

As presented, this is not a statutory ground for vacating or correcting an arbitration award. Accordingly, it is also not a ground for refusing to enter judgment on an arbitration award that has been confirmed.

The MOM Parties refer to Code of Civil Procedure section 877, which provides a good faith settlement by a joint tortfeasor reduces the claims against co-obligors. This was an issue to be raised to, and decided by, the arbitrator when he was deciding damages. The MOM Parties make no showing or argument that this issue was raised in arbitration and the arbitrator exceeded his authority in how he dealt with it – or that there are any other grounds for vacation or correction of an arbitration award.

Receiver Language in Final Award Should Be Corrected

Finally, the MOM Parties ask the Court to correct the arbitrator's statement in the Final Award that a receiver is necessary, because the arbitrator does not (as he noted) have the power to appoint a receiver. They further argue that the issue of appointment of a receiver should be left to an application to this Court that meets the statutory requirements.

But this court has already appointed a receiver. [ROA ## 583, 591.] The arbitrator's advice on this point is now moot.

Intervenor's Limited Opposition [ROA #422.]

Intervenor Preferred Bank was not a party to the arbitration but is a recent intervenor in the proceedings before the Court in order to remove a lis pendens Plaintiffs placed on real property that secured a loan issued by Preferred Bank. [Complaint in Intervention (ROA #1014); Motion to Expunge (ROA #1039).]

Preferred does not oppose confirmation of the Final Award but objects to judgment being entered prior to its motion to expunge being heard on 9/14/26 because the judgment sought by Plaintiffs, as described in their petition, would be in their favor and include relief beyond judgment against Mahender Makhijani, Continuum, and the MOM Parties and the claims addressed in the arbitration.

The Court will hear from counsel on this issue.

Conclusion

The petition to confirm the Final Award is granted.

Subject to discussion with counsel, the Court will enter judgment on the Final Award, as well as the Partial Final Award.

Plaintiff is ordered to give notice.

111	2023-01325570 Mom CA Investco, LLC vs. 247 Hotels Beverage, LLC	ADR Review Hearing The Court intends on vacating this hearing and will not set any future dates. Should any party believe that a future hearing date is necessary, such party should advise the Court.
112	2023-01322886 MOM CA Investco LLC vs. Honarkar	Status Conference re: ADR The Court intends on vacating this hearing and will not set any future dates. Should any party believe that a future hearing date is necessary, such party should advise the Court.